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Gun groups sue after Newsom signs law to ban handguns that convert to machine guns

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SAN DIEGO - A trio of Second Amendment rights organizations filed a lawsuit Monday in San Diego federal court challenging a new state law that California Gov. Gavin Newsom signed Friday that bans the sale of semi-automatic handguns that can be easily converted into submachine guns with the use of a device commonly known as a “Glock switch.”

More than half of the states in the U.S., including California, already prohibit the use of Glock switches, but the new California law, which is set to go into effect July 1 of next year, takes things a step further by banning any semi-automatic handgun with a specific type of trigger bar that allows it to be easily converted into a fully automatic pistol.

The lawsuit argues in part that the new law bans the sale of almost all handguns made by Glock, and since Glock is one of the most popular firearms brands in the U.S., then such a ban is unconstitutional.

“A law that bans the sale of - and correspondingly prevents citizens from acquiring - a weapon in common use violates the Second Amendment,” the lawsuit contended.

California Attorney General Rob Bonta, who is the named defendant in the case since his office is tasked with defending the state law, did not respond Tuesday to questions about the lawsuit.

Glock switches, which are also known as auto sears or selector switches, can be ordered online or made at home with a 3D printer. The small device attaches to the back of a Glock or Glock-style handgun and interferes with the gun’s internal trigger components. This converts the gun from semi-automatic, when one round leaves the gun each time the trigger is pulled, to fully automatic, meaning it fires continuously when the trigger is pulled back and held.

Federal law already outlaws most automatically firing weapons, which it defines as machine guns, as well as Glock switches and other similar conversion devices. But California and other states have passed similar laws to enable local prosecutors to enforce such prohibitions. The Associated Press reported in March that more than half of U.S. states have enacted laws banning Glock switches.

According to the newly filed lawsuit, however, Massachusetts is the only other state besides California that has banned Glock and Glock-style semi-automatic handguns.

The state lawmakers who authored the new regulation, Assembly Bill 1127, celebrated Newsom’s signing of the legislation on Friday, saying that banning the easily convertible pistols is a “top priority for the national gun safety movement.” They said the use of Glock switches has skyrocketed in recent years.

According to the Associated Press, the Bureau of Alcohol, Tobacco and Firearms seized 814 machine gun conversion devices from 2012 to 2016. That number jumped to 5,454 such devices in the next five-year period from 2017 to 2021.

“No gun sold in California should be just a screwdriver away from becoming a machine gun,” Assemblymember Catherine Stefani, D-San Francisco, said in a statement last week. “We are closing a deadly loophole that has fueled gun violence in our communities.”

Assemblymember Jesse Gabriel, D-Encino, who co-authored the bill, said in a statement that a switch device was utilized on at least one of the guns used in a gang-related shootout in 2022 near the state Capitol Building that left six people dead and a dozen wounded.

“As parents and lawmakers, we refuse to stand idly by while our schools and communities are being threatened by illegal machine guns,” Gabriel said in a statement.

But according to the lawsuit filed Monday, Glock and other handguns with cruciform trigger bars that make them easily convertible to automatic “are not different from any other type of semiautomatic handgun in a constitutionally relevant way.” The lawsuit argued that the new state law violates the Second Amendment because it “effectively closes the door” on the sale of some of the most common handguns in the U.S.

“The Constitution does not allow elitist politicians to decide which constitutionally protected guns the people may own,” Brandon Combs, president of the Firearms Policy Coalition, one of the plaintiffs in the case, said in a statement. “Every American has a right to choose the tools they trust to defend their lives and liberty.”

Other plaintiffs in the case include the National Rifle Association of America, the Second Amendment Foundation and Poway Weapons & Gear.

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